

Opinion of the Court

“deeply rooted in this Nation’s history and tradition,” *id.*, at 503 (plurality opinion); *Snyder v. Massachusetts*, 291 U. S. 97, 105 (1934) (“so rooted in the traditions and conscience of our people as to be ranked as fundamental”), and “implicit in the concept of ordered liberty,” such that “neither liberty nor justice would exist if they were sacrificed,” *Palko v. Connecticut*, 302 U. S. 319, 325, 326 (1937). Second, we have required in substantive-due-process cases a “careful description” of the asserted fundamental liberty interest. *Flores*, *supra*, at 302; *Collins*, *supra*, at 125; *Cruzan*, *supra*, at 277–278. Our Nation’s history, legal traditions, and practices thus provide the crucial “guideposts for responsible decision-making,” *Collins*, *supra*, at 125, that direct and restrain our exposition of the Due Process Clause. As we stated recently in *Flores*, the Fourteenth Amendment “forbids the government to infringe . . . ‘fundamental’ liberty interests *at all*, no matter what process is provided, unless the infringement is narrowly tailored to serve a compelling state interest.” 507 U. S., at 302.

JUSTICE SOUTER, relying on Justice Harlan’s dissenting opinion in *Poe v. Ullman*, 367 U. S. 497 (1961), would largely abandon this restrained methodology, and instead ask “whether [Washington’s] statute sets up one of those ‘arbitrary impositions’ or ‘purposeless restraints’ at odds with the Due Process Clause of the Fourteenth Amendment,” *post*, at 752 (quoting *Poe*, *supra*, at 543 (Harlan, J., dissenting)).¹⁷

¹⁷ In JUSTICE SOUTER’s opinion, Justice Harlan’s *Poe* dissent supplies the “modern justification” for substantive-due-process review. *Post*, at 756, and n. 4 (opinion concurring in judgment). But although Justice Harlan’s opinion has often been cited in due process cases, we have never abandoned our fundamental-rights-based analytical method. Just four Terms ago, six of the Justices now sitting joined the Court’s opinion in *Reno v. Flores*, 507 U. S. 292, 301–305 (1993); *Poe* was not even cited. And in *Cruzan v. Director, Mo. Dept. of Health*, 497 U. S. 261 (1990), neither the Court’s nor the concurring opinions relied on *Poe*; rather, we concluded that the right to refuse unwanted medical treatment was so rooted in our history, tradition, and practice as to require special protection under the